

4. 9:00 AM CASE NUMBER: C25-00147
CASE NAME: JANE DOE VS. COUNTY OF CONTRA COSTA, A PUBLIC ENTITY
JUDGMENT ON THE PLEADINGS
FILED BY: COUNTY OF CONTRA COSTA, A PUBLIC ENTITY
TENTATIVE RULING:

Before the Court is a motion for judgment on the pleadings ("Motion") filed by defendant County of Contra Costa ("Defendant"). The Motion argues that the first, second, and third causes of action fail and that the Court should grant the Motion without leave to amend.

For the reasons set forth below, the hearing on the Motion is continued until **Monday, November 2, 2026, at 9:00 a.m., in Department 34**. The parties shall meet and confer **by October 9, 2026**, and Defendant shall file the required "meet and confer" declaration showing compliance with Code of Civil Procedure section 439, subdivision (a), **by October 16, 2026**.

Code of Civil Procedure section 439, subdivision (a), requires the party intending to file a motion for judgment on the pleadings to meet and confer with the party whose pleading is being challenged "**in person, by telephone, or by video conference**" prior to filing the motion for judgment on the pleadings. In addition to this, a party may satisfy this requirement when the party who filed the pleading subject to the motion "failed to respond to the meet and confer request of the moving party. . . ." *Id.* The moving party must then file a declaration with the motion attesting to the party's compliance with the meet and confer requirement. *Id.* Courts have wide discretion to continue hearings to order further meet and confer efforts to take place. See *Dumas v. Los Angeles County Bd. of Supervisors* (2020) 45 Cal.App.5th 348, 355, fn. 3 ("Of course, trial courts are not required to ignore defects in the meet and confer process. If, upon review of a declaration under section 430.41, subdivision (a)(3), a court learns no meet and confer has taken place, or concludes further conferences between counsel would likely be productive, it retains discretion to order counsel to meaningfully discuss the pleadings with an eye toward reducing the number of issues or eliminating the need for a demurrer, and to continue the hearing date to facilitate that effort.")

Here, Defendant has not filed any declaration with the Motion that addresses the status or satisfaction of the meet and confer requirement. Accordingly, the Court finds that Defendant has made no effort to meet and confer in accordance with the law. The hearing is therefore continued for the parties to meet and confer pursuant to the statute.

5. 9:00 AM CASE NUMBER: C25-00713
CASE NAME: PRAVEEN GUPTA VS. THE VINTNER CONDOMINIUM HOMEOWNERS ASSOCIATION
PRELIMINARY INJUNCTION
FILED BY: GUPTA, PRAVEEN
TENTATIVE RULING:

Plaintiff filed his Second Motion for Preliminary Injunction on April 30, 2026 which was set for hearing on September 28, 2026. A prior motion was denied without prejudice to renewing the motion based on the current operative pleadings. See Order entered April 21, 2026. The renewed motion is based on the Second Amended Complaint. However, Plaintiff's operative complaint has again been superseded by an amended complaint. A Third Amendment Complaint was filed on September 8, 2026. Accordingly, the renewed motion is **DENIED**, again without prejudice.

6. 9:00 AM CASE NUMBER: C25-01070
CASE NAME: FUAD ALQADHI VS. JUAN GAYTAN ALMANZA
PLAINTIFF'S AMENDMENT TO COMPLAINT
FILED BY: GAYTAN ALMANZA, JUAN CARLOS

TENTATIVE RULING:

Defendant Juan Carlos Gaytan Almanza's ("Almanza") May 7, 2026 "Demurrer to Plaintiff's Amendment to Complaint" is OVERRULED.

Background

Plaintiff Fuad Alqadhi alleges that he was injured in a motor vehicle collision on April 18, 2023. He filed his complaint on April 16, 2025, alleging causes of action for motor vehicle negligence and general negligence against Almanza, the registered owner and insurance policyholder of the other vehicle, and Does 1 through 50. On December 23, 2025, Plaintiff filed an amendment to the complaint substituting Jacquelin Gaytan, the driver of Almanza's vehicle, for Doe 1. The Court signed the amendment form on February 20, 2026.

Almanza filed this demurrer on May 7, 2026. He argues that Plaintiff knew Gaytan's identity when the complaint was filed, so the Doe amendment does not relate back under Code of Civil Procedure section 474 and the claims against Gaytan are barred by the two-year statute of limitations in Code of Civil Procedure section 335.1. Plaintiff filed his opposition on September 15, 2026, supported by the declarations of Plaintiff and his counsel, Nikolaus W. Reed.

Analysis - Procedure

The notice of demurrer names Almanza as the demurring party, but the demurrer is directed entirely at the Doe amendment substituting Gaytan, and the memorandum asks that the action against Gaytan be dismissed. The same counsel represented both defendants when the demurrer was filed, and Plaintiff does not object to the form of the demurrer or to Almanza's standing to bring it. The Court therefore treats the demurrer as brought on behalf of Gaytan.

Code of Civil Procedure section 474 does not specify how a defendant may challenge a Doe amendment. When a defendant contends the plaintiff knew the defendant's name and the facts supporting the cause of action when the complaint was filed, whether the plaintiff was actually ignorant is ordinarily a question of fact. (*McOwen v. Grossman* (2007) 153 Cal.App.4th 937, 944-948.) Courts have permitted such challenges through evidence-based pretrial motions, including motions to quash service of summons. (*A.N. v. County of Los Angeles* (2009) 171 Cal.App.4th 1058, 1063, 1067.) A demurrer is not a suitable vehicle, because the demurring party's knowledge showing does not appear on the face of the pleading.

Nothing on the face of the complaint or the Doe amendment shows a time bar. For this reason alone, the Court would overrule the Demurrer.

Merits

Even if not procedurally defective, the Court would overrule the Demurrer.